

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: [REDACTED]	Team: Squad #6	CCRB Case #: 202107793	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Bias	
Incident Date(s) Friday 12/17/2021 5:45 PM	18 Mo. SOL 06-17-2023	EO SOL 06-17-2023	Location of Incident: Intersection of West 189th Street and Wadsworth Avenue	Precinct: 34
Date/Time CV Reported Sat, 12/18/2021 7:57 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/22/2021 2:16 PM	

Complainant/Victim	Type	Home Address
1. Person 1	Comp/Victim	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. PO Marvin Jeanbaptiste	11466	970621	034 PCT
2. LT Angel Taveras	00000	931304	034 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LT Angel Taveras	Abuse of Authority: Lieutenant Angel Taveras threatened to arrest Person 1	A . Miscellaneous - Subject Retired
B . LT Angel Taveras	Abuse of Authority: Lieutenant Angel Taveras threatened to issue summons to Person 1	B . Miscellaneous - Subject Retired
C . PO Marvin Jeanbaptiste	Abuse of Authority: Police Officer Marvin Jean Baptiste threatened to arrest Person 1	C . Unfounded
D . PO Marvin Jeanbaptiste	Other Possible Misconduct Noted: Police Officer Marvin Jean Baptiste failed to prepare a memo book entry as required.	D . Other Possible Misconduct

Case Summary

On December 18, 2021, Person 1 filed the following complaint over the phone with the CCRB.

On December 17, 2021, at approximately 5:45 PM, Lt. Angel Taveras and PO Marvin Jean Baptiste, of the 34th Precinct, Lt. Taveras effected a car stop at the intersection of West 189th Street and Wadsworth Avenue in the Bronx. During the incident, Lt. Taveras allegedly threatened to arrest Person 1 and issue him additional summons if he would not step out of the car (**Allegation A and B: Abuse of Authority: Miscellaneous – Subject Retired**). Person 1 alleged that at some point during the incident, PO Jean Baptiste threatened to arrest him (**Allegation C: Abuse of Authority: Unfounded**). Person 1 was not arrested and was issued one summons for driving an unregistered vehicle.

Body worn camera (BWC) footage was obtained for this incident (**Board Review 1, 2**).

PO Jean Baptiste did not make a memo book entry for this incident (**Allegation D: Other Possible Misconduct Noted**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Lt. Angel Taveras threatened to arrest Person 1
Allegation (B) Abuse of Authority: Lt. Angel Taveras threatened to issue a summons to Person 1
Allegation (C) Abuse of Authority: Police Officer Marvin Jean Baptiste threatened to arrest Person 1

NYPD EVENT D21121716988 has the incident classified as harassment in progress (**Board Review 3**). The EVENT further describes that police are on scene and are threatening Person 1 to get out of his vehicle. Person 1 requested a sergeant from the 34 Precinct to come assist him. The EVENT was then cross referenced to EVENT D21121716988 and was closed as a duplicate.

At 1:10 minutes, Person 1 hands Lt. Taveras his license and tells him that his friend who he borrows the car from has no paperwork because the DMV has not sent it yet (**Board Review 1**). At 2:53 minutes, Lt. Taveras tells Person 1 that he needs to take the car because the car is not registered and he asks Person 1 for the car keys. At 3:30 minutes, Person 1 gets back into the car. At 4:22 minutes, Lt. Taveras asks Person 1 to get out of the car and he gets out of the car. At 9:10 minutes, Lt. Taveras tells Person 1 that he was driving in the wrong direction and Person 1 explains that he attempted to merge into the turning lane, “a bit early.” At 11:05 minutes, Person 1 requests a supervisor to the scene and proceeds to sit back inside the car. Lt. Taveras says, “Listen, if you do not want to be arrested – if you obstruct me from doing my job, you will be arrested.” At 12:12 minutes, Person 1 is on the phone with an NYPD operator and says that he will not get out of the car until more officers come. Lt. Taveras tells Person 1 “Sir, when I’m ready to take that car, I’m taking the car. Do you understand that? If you obstruct me, you will be arrested.” 12:37 minutes, Lt. Taveras tells Person 1 that he is obstructing his ability to do his job. At 12:48 minutes, Lt. Taveras says that Person 1 needs to get out of the car soon. Lt. Taveras tells Person 1 that he will be arrested. At 13:50 minutes, after numerous requests from Person 1 Lt. Taveras call for additional officers. At 14:08 minutes, Lt. Taveras tells Person 1 to get out of the car. PO Jean Baptiste tells Person 1 to get out of the car and that he should be happy that he is not getting arrested. PO Jean Baptiste reiterates that Person 1 is not being placed under arrest right now, that he gets to go home, but that the officers have to take the

car. At 14:28 minutes, Lt. Taveras tells Person 1 to get out of the car and to move away from the car. At 15:00 minutes, Person 1 steps away from the car. At 20:00 minutes, Lt. Taveras tells PO Jean Baptiste to give Person 1 a summons for having no insurance card and for driving over the yellow lines. At 22:07 minutes, Lt. Taveras tells PO Jean Baptiste and Person 1 that they will give him a discretion for having no insurance card and for driving over the yellow lines.

The BWC footage is consistent with one another and at no point in any officer's BWC footage is PO Jean Baptiste captured threatening to arrest Person 1 (Board Review 1, 2, 4, 5).

On the incident date, Person 1 testified that he had improperly merged into a turning lane and was subsequently pulled over by Lt. Taveras (Board Review 6). Lt. Taveras told Person 1 that his car was not registered and that he would need to take it to an impound lot. Lt. Taveras instructed Person 1 to get out of the car, but Person 1 would not get out the car because he wanted to speak with a supervisor. Person 1 called 911 to request a supervisor to the incident location. While Person 1 was on the phone, Lt. Taveras threatened to arrest Person 1 for obstructing him. PO Jean Baptiste told Person 1 that Lt. Taveras would arrest him if he did not get out of the car. As Sgt. Cesar Polanco was arriving, Lt. Taveras threatened Person 1 with additional summonses for having no insurance and for "bad driving." Person 1 was handed a summons for driving an unregistered vehicle and the officers took his car.

Lt. Taveras testified that he stopped Person 1 for driving over the double yellow lines and upon further investigation, he discovered that Person 1 temporary license plates were expired a month prior (Board Review 7). Person 1 refused to get out of the car even though Lt. Taveras explained several times why he would need to get out of the car. Lt. Taveras told Person 1 he could be arrested for obstructing governmental administration; however, there was nothing else he could have been arrested for. Lt. Taveras told Person 1 that he would issue him a summons for having no insurance. However, if Lt. Taveras were to issue this summons, then Person 1 would have had another opportunity to show proof of insurance. Lt. Taveras did not witness PO Jean Baptiste threaten to arrest Person 1. Lt. Taveras witnessed PO Jean Baptiste try to advise Person 1 of his situation to de-escalate the situation, and that what PO Jean Baptiste was telling Person 1 was not a threat. Since the date of his interview, Lt. Taveras has retired from the NYPD.

PO Jean Baptiste did not have a memo book entry for this incident and Lt. Taveras' memo book was not ordered (Board Review 8).

Since the filing of this complaint, Lt. Taveras has retired from the NYPD and the investigation is awaiting his official date of separation (Board Review 9, 10).

Officer BWC footage shows that PO Jean Baptiste did not threaten to arrest Person 1 at any point during the incident. Consistent with Lt. Taveras' testimony, the BWC footage shows that PO Jean Baptiste tried to defuse the situation to the best of his ability, and he explained to Person 1 that he would not be arrested.

As Lt. Taveras retired before the conclusion of this investigation, it is recommended that both **Allegations A and B** be closed as *Miscellaneous – Subject Retired*. As the BWC confirmed that PO Jean Baptiste never threatened to arrest Person 1 it is recommended that **Allegation C** be closed as *Unfounded*.

Allegation (D) Other Possible Misconduct Noted: Police Officer Marvin Jean Baptiste failed to prepare a memo book entry as required.

Although PO Jean Baptiste was not interviewed, based on his activity log, he did not make a memo book entry for this incident (**Board Review 8**). The incident occurred at 5:45 PM, however, the activity log has PO Jean Baptiste ending his tour at 5:35 PM.

NYPD Patrol Guide Section 212-08 instructs officers to make entries in their memo book an assignment is received and or completed (**Board Review 11**).

PO Jean Baptiste did not prepare a memo book entry as required by NYPD Patrol Guide Section 212-08; therefore, it is recommended that **Allegation D** be closed as **Other Possible Misconduct Noted**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which Person 1 has been a party (**Board Review 12**).
- While Lt. Taveras' service time could not be calculated due to his retirement, he has been a subject in seven CCRB complaints and seven allegations, none of which were substantiated. Lt. Taveras' CCRB history does not reflect any apparent pattern pertinent to this investigation (**Board Review 13**).
- PO Jean Baptiste has been a member of service for one year and has been a subject in one CCRB complaints and one allegation, which was substantiated. PO Jean Baptiste's CCRB history does not reflect any apparent pattern pertinent to this investigation (**Board Review 14**).

Mediation, Civil, and Criminal Histories

- Mediation was not offered due to the mediation moratorium.
- As of July 11, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed by Person 1 in regard to this complaint (**Board Review 15**).
- According to the Office of Court Administration (OCA), between September 10, 2018, and July 11, 2022, Person 1 was convicted of Burglary in the 3rd Degree (two counts), Criminal Possession of Stolen Property in the 5th Degree, Petit Larceny, Grand Larceny in the 4th Degree, Obstructing Governmental Administration in the 2nd Degree, Harassment in the 2nd Degree (two counts), Aggravated Harassment in the 2nd Degree, Disorderly Conduct, Trespass, Criminal Trespass in the 3rd Degree, Criminal Trespass in the 2nd Degree, Resisting Arrest and Person 1 received varying amounts of fine, imprisonment, and community service. OCA does not list any other convictions (**Board Review 16**).

Squad: 6

Investigator: _____ July 14, 2022
Signature Print Title & Name Date

Squad Leader: _____ 7/14/2022
Signature Print Title & Name Date



Reviewer:

Signature

Print Title & Name

Date